

CALIFORNIA LEGISLATURE - 2025-2026 SIMULATION SESSION

SENATE BILL

NO. 39

Introduced by Senator Gonzalez

October 01, 2025

To prohibit new oil drilling and toxic industrial operations within 3,200 feet of K-12 schools, daycare centers, and residential areas.

LEGISLATIVE COUNSEL'S DIGEST

SB 39, as introduced by Senator Gonzalez. Clean Air Near Schools Act.

Existing law authorizes the State Oil and Gas Supervisor to regulate drilling, operation, and abandonment of oil and gas wells. While California has adopted some setbacks between drilling and sensitive areas, there remains no statewide prohibition on new oil or gas operations near schools and residential communities.

This bill would prohibit the issuance of new oil and gas drilling permits, or renewal of expiring permits, within 3,200 feet of schools, daycare centers, and residential zones. It directs the California Geologic Energy Management Division (CalGEM) to enforce this law, and allows for **civil penalties of up to 5% of the discretionary income of the company who violates, increasing per day for violations.**

Vote: 2/3 floor **Appropriation:** No. **Fiscal Committee:** Yes **Local Program:** Yes (requires local enforcement coordination)

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

SECTION 1.

(a) The Legislature finds and declares the following:

1. Children and families living near oil and gas drilling sites face elevated risks of asthma, cancer, adverse birth outcomes and other health conditions due to air pollutants and toxic emissions.
2. Studies provide evidence of these elevated health risks: A 2021 peer-reviewed study by the University of Southern California (USC) found that residents living near active drilling sites in Los Angeles experienced significantly reduced lung function, comparable to the impact of daily exposure to secondhand smoke.

(b) Children are particularly vulnerable. Many California schools are located near urban oil fields, in Los Angeles County alone, over 70,000 children attend a school located within 1-2 miles of active oil and gas operations. Exposure to these pollutants in childhood is linked to lifelong respiratory illness and greater risk of chronic disease.

(c) The purpose of this Act is to protect public health and promote environmental justice.

SECTION 2.

- (a) Notwithstanding any other provision of law, no new oil or gas drilling permits shall be issued within 3,200 feet of a K-12 school, daycare center, or residential dwelling.
- (b) Existing permits in such zones shall not be renewed upon expiration.

SECTION 3.

- (a) The California Geologic Energy Management Division shall enforce the provisions of this Act.
- ~~(b) Any violation shall be subject to civil penalties not to exceed \$25,000 per day.~~
- (b) This bill allows civil penalties of up to 5% of the discretionary income of the company that violates, the percentage increasing per day for violations.
- (c) Local air quality management districts shall cooperate with CalGEM in monitoring and enforcement.

